

**SUBSTITUTE FOR
SENATE BILL NO. 694**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending sections 550, 550a, 805, 8175, and 8176 (MCL 600.550,
600.550a, 600.805, 600.8175, and 600.8176), section 550 as amended
by 2009 PA 228, sections 550a and 8176 as amended by 2022 PA 7,
section 805 as amended by 2011 PA 300, and section 8175 as amended
by 1990 PA 54.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 550. (1) An additional circuit judgeship permitted by
2 this chapter ~~shall~~**is** not ~~be~~ authorized to be filled by election
3 unless each county in the circuit, by resolution adopted by the
4 county board of commissioners, approves the creation of that
5 judgeship and unless the clerk of each county adopting ~~such a~~**that**



1 resolution files a copy of the resolution with the state court
 2 administrator not later than 4 p.m. of the ~~sixteenth Tuesday~~
 3 ~~preceding one hundred fifty-first day before~~ the ~~August-May~~ primary
 4 for the election to fill the additional circuit judgeship. The
 5 state court administrator shall immediately notify the elections
 6 division of the department of state with respect to each new
 7 circuit judgeship authorized ~~pursuant to~~ **under** this subsection. If
 8 a circuit judgeship is permitted by law to be authorized without a
 9 resolution being adopted by the county board of commissioners, the
 10 state court administrator shall immediately notify the elections
 11 division of the department of state with respect to each new
 12 circuit judgeship authorized.

13 (2) A resolution required under subsection (1) that is filed
 14 before the effective date of the amendatory act that authorized
 15 that judgeship is a valid approval of the judgeship for purposes of
 16 this section only if the filing occurs within the 2-year state
 17 legislative session during which the amendatory act was enacted. A
 18 resolution required under subsection (1) that is filed after the
 19 effective date of the amendatory act that added that judgeship is a
 20 valid approval of the judgeship for purposes of this section only
 21 if the filing occurs not later than 4 p.m. of the ~~sixteenth Tuesday~~
 22 ~~preceding one hundred fifty-first day before~~ the ~~August-May~~ primary
 23 for the election immediately preceding the effective date of the
 24 additional judgeship.

25 (3) By permitting an additional judgeship, or by restoring a
 26 judgeship after a temporary reduction in judgeships as described in
 27 subsection (5), the legislature is not creating that judgeship. If
 28 a county, acting through ~~its~~ **the county's** board of commissioners,
 29 approves the creation of an additional circuit judgeship, that



1 approval constitutes an exercise of the county's option to provide
 2 a new activity or service or to increase the level of activity or
 3 service offered in the county beyond that required by existing law,
 4 as the elements of that option are defined by 1979 PA 101, MCL
 5 21.231 to 21.244, and a voluntary acceptance by the county of all
 6 expenses and capital improvements ~~which-that~~ may result from the
 7 creation of the judgeship. However, the exercise of the option does
 8 not affect ~~the-this~~ state's obligation to pay the same portion of
 9 the additional judge's salary ~~which-that~~ is paid by ~~the-this~~ state
 10 to the other judges of the same circuit, or to appropriate and
 11 disburse funds to the county for the necessary costs of state
 12 requirements established by a state law ~~which-that~~ becomes
 13 effective on or after December 23, 1978.

14 (4) Each additional circuit judgeship created ~~pursuant to~~
 15 **under** subsection (1) ~~shall-must~~ be filled by election ~~pursuant to~~
 16 **under** the Michigan election law, 1954 PA 116, MCL 168.1 to 168.992.
 17 The first term of each additional circuit judgeship ~~shall-be-is~~ 6
 18 years, unless the law permitting the additional judgeship provides
 19 for a term of a different length.

20 (5) If, by law, the number of judgeships in a judicial circuit
 21 is temporarily reduced for a period of not more than 6 years and
 22 then restored to the number of judgeships that existed before the
 23 temporary reduction, the restored judgeship or judgeships are not
 24 considered additional circuit judgeships for purposes of this
 25 section, and a resolution of approval under subsection (1) is not
 26 required.

27 (6) A temporary reduction in the number of circuit judgeships
 28 in a judicial circuit ~~shall-does~~ not take effect unless both of the
 29 following occur:



(a) Each county in the circuit, by resolution adopted by the county board of commissioners, supports the temporary reduction in the number of judgeships.

(b) The clerk of each county adopting the resolution files a copy of the resolution with the state court administrator not later than 4 p.m. of the ~~sixteenth Tuesday preceding~~ **one hundred fifty-first day before** the date on which the ~~August~~ **May** primary would have been held for the judgeship that is being eliminated. A resolution required under subdivision (a) that is filed before ~~the effective date of the amendatory act that added this subsection~~ **January 5, 2010** is valid if the filing occurs within the 2-year state legislative session during which the amendatory act was enacted.

(7) The state court administrator shall immediately notify the elections division of the department of state with respect to either of the following:

(a) A temporary reduction in the number of judgeships in a judicial circuit.

(b) The restoration of the number of judgeships in a judicial circuit, after a temporary reduction in that number.

Sec. 550a. (1) Except as otherwise provided in this section, if a new judicial circuit is proposed by law, that new circuit is not created and any circuit judgeship proposed for the circuit is not authorized or filled by election unless each county in the proposed circuit, by resolution adopted by the county board of commissioners, approves the creation of the new circuit and each judgeship proposed for the circuit and unless the clerk of each county adopting that resolution files a copy of the resolution with the state court administrator not later than 4 p.m. of the



~~sixteenth Tuesday preceding~~ **one hundred fifty-first day before** the ~~August~~ **May** primary immediately following the effective date of the amendatory act permitting the creation of the new circuit. The state court administrator shall immediately notify the elections division of the department of state with respect to each new judicial circuit and circuit judgeship authorized under this subsection.

(2) By proposing a new judicial circuit and 1 or more circuit judgeships for the circuit, the legislature is not creating that circuit or any judgeship in the circuit. If a county, acting through ~~its~~ **the county's** board of commissioners, approves the creation of a new circuit and 1 or more circuit judgeships proposed by law for that circuit, that approval constitutes an exercise of the county's option to provide a new activity or service or to increase the level of activity or service offered in the county beyond that required by existing law, as the elements of that option are defined by 1979 PA 101, MCL 21.231 to 21.244, and a voluntary acceptance by the county of all expenses and capital improvements that may result from the creation of the new circuit and each judgeship. However, the exercise of the option does not affect ~~the~~ **this** state's obligation to pay a portion of the circuit judge's or judges' salary as provided by law, or to appropriate and disburse funds to the county for the necessary costs of state requirements established by a state law that takes effect on or after December 23, 1978.

(3) Each circuit judgeship created under subsection (1) must be filled by election under the Michigan election law, 1954 PA 116, MCL 168.1 to 168.992. The first term of each circuit judgeship is 6 years, unless the law permitting the creation of the new circuit



1 and 1 or more judgeships provides for a term of a different length.

2 (4) The reformation of the eleventh, twenty-third, twenty-
3 sixth, thirty-fourth, fiftieth, and fifty-third judicial circuits
4 under 2002 PA 92 does not require a resolution of approval by the
5 county board of commissioners under this section or section 550.

6 (5) The reformation of the twenty-seventh and fifty-first
7 judicial circuits under ~~the amendatory act that added this~~
8 ~~subsection~~ **2022 PA 7** does not require a resolution of approval by
9 the county board of commissioners under this section or section
10 550.

11 Sec. 805. (1) The additional judges of probate permitted by
12 section 803 ~~shall~~ **must** not be filled by election unless the county,
13 by resolution adopted by the county board of commissioners,
14 approves the creation of that judgeship and unless the clerk of
15 that county files a copy of the resolution with the state court
16 administrator not later than 4 p.m. of the ~~thirteenth Tuesday~~
17 ~~preceding~~ **one hundred fifty-first day before** the ~~August~~ **May** primary
18 for the election to fill the additional judge of probate. The state
19 court administrator shall immediately notify the county clerk with
20 respect to any new judge of probate authorized for that county
21 under this subsection.

22 (2) By permitting an additional judgeship, the legislature is
23 not creating that judgeship. If a county, acting through ~~its~~ **the**
24 **county's** board of commissioners, approves the creation of an
25 additional judge of probate, that approval constitutes an exercise
26 of the county's option to provide a new activity or service or to
27 increase the level of activity or service offered in the county
28 beyond that required by existing law, as the elements of that
29 option are defined by 1979 PA 101, MCL 21.231 to 21.244, and a



1 voluntary acceptance by the county of all expenses and capital
 2 improvements that may result from the creation of the judgeship.
 3 However, the exercise of the option does not affect ~~the~~**this**
 4 state's obligation to pay the same portion of the additional
 5 judge's salary that is paid by ~~the~~**this** state to the other judges
 6 of probate of the same county, or to appropriate and disburse funds
 7 to the county for the necessary costs of state requirements
 8 established by a state law that takes effect on or after December
 9 23, 1978.

10 (3) Each additional judgeship created under subsection (1)
 11 ~~shall~~**must** be filled by election under the Michigan election law,
 12 1954 PA 116, MCL 168.1 to 168.992. The first term of each
 13 additional judgeship ~~shall be~~**is** 6 years unless the law permitting
 14 the additional judgeship provides for a term of a different length.

15 (4) A combination of the office of probate judge with a
 16 judicial office of limited jurisdiction within a county under
 17 section 15 of article VI of the state constitution of 1963 that
 18 does not result in an increase in the total number of trial
 19 judgeships in the county does not require a resolution of approval
 20 by the county board of commissioners under this section.

21 Sec. 8175. (1) The additional district judgeships permitted by
 22 this chapter ~~shall~~**must** not be authorized to be filled by election
 23 unless each district control unit of the district, by resolution
 24 adopted by the governing body of the district control unit,
 25 approves the creation of that judgeship and unless the clerk of
 26 each district control unit adopting ~~such a~~**that** resolution files a
 27 copy of the resolution with the state court administrator not later
 28 than 4 p.m. of the ~~sixteenth Tuesday preceding~~**one hundred fifty-**
 29 **first day before** the ~~August~~**May** primary for the election to fill



1 the additional district judgeship. The state court administrator
 2 shall immediately notify the elections division of the department
 3 of state with respect to each new district judgeship authorized
 4 ~~pursuant to~~ **under** this subsection.

5 (2) A resolution required under subsection (1) that is filed
 6 before the effective date of the amendatory act that authorized
 7 that judgeship is a valid approval of the judgeship for purposes of
 8 this section only if the filing occurs within the 2-year state
 9 legislative session during which the amendatory act was enacted. A
 10 resolution required under subsection (1) that is filed after the
 11 effective date of the amendatory act that added that judgeship is a
 12 valid approval of the judgeship for purposes of this section only
 13 if the filing occurs not later than 4 p.m. of the ~~sixteenth Tuesday~~
 14 ~~preceding~~ **one hundred fifty-first day before** the ~~August~~ **May** primary
 15 for the election immediately ~~preceding~~ **before** the effective date of
 16 the additional judgeship.

17 (3) By permitting an additional judgeship, the legislature is
 18 not creating that judgeship. If a district control unit, acting
 19 through ~~its~~ **the district control unit's** governing body, approves
 20 the creation of an additional district judgeship, that approval
 21 constitutes an exercise of the district control unit's option to
 22 provide a new activity or service or to increase the level of
 23 activity or service offered in the district control unit beyond
 24 that required by existing law, as the elements of that option are
 25 defined by ~~Act No. 101 of the Public Acts of 1979, being sections~~
 26 ~~21.231 to 21.244 of the Michigan Compiled Laws, 1979 PA 101, MCL~~
 27 **21.231 to 21.244**, and a voluntary acceptance by the district
 28 control unit of all expenses and capital improvements ~~which~~ **that**
 29 may result from the creation of the judgeship. However, the



exercise of the option does not affect ~~the~~**this** state's obligation to pay the same portion of the additional judge's salary ~~which~~**that** is paid by ~~the~~**this** state to the other district judges in the same district, or to appropriate and disburse funds to the district control unit for the necessary costs of state requirements established by a state law ~~which~~**that** becomes effective on or after December 23, 1978.

(4) Each additional district judgeship created ~~pursuant to~~**under** subsection (1) ~~shall~~**must** be filled by election ~~pursuant to~~**under** the Michigan election law, ~~Act No. 116 of the Public Acts of 1954, as amended, being sections 168.1 to 168.992 of the Michigan Compiled Laws.~~**1954 PA 116, MCL 168.1 to 168.992.** The first term of each additional district judgeship ~~shall be~~**is** 6 years, unless the law permitting the additional judgeship provides for a term of a different length.

Sec. 8176. (1) Except as otherwise provided in this section, if a new district is proposed by law, that new district is not created and any district judgeship proposed for the district is not authorized or filled by election unless each district control unit in the proposed district, by resolution adopted by the governing body of the district control unit, approves the creation of the new district and each judgeship proposed for the district and unless the clerk of each district control unit adopting that resolution files a copy of the resolution with the state court administrator not later than 4 p.m. of the ~~sixteenth Tuesday preceding one~~**hundred fifty-first day before** the ~~August~~**May** primary for the election immediately ~~preceding~~**before** the effective date of the new district. The state court administrator shall immediately notify the elections division of the department of state with respect to



1 each new judicial district and district judgeship authorized under
2 this subsection.

3 (2) A resolution required under subsection (1) that is filed
4 before the effective date of the amendatory act that authorized
5 that new district is a valid approval for purposes of this section
6 only if the filing occurs within the 2-year state legislative
7 session during which the amendatory act was enacted. A resolution
8 required under subsection (1) that is filed after the effective
9 date of the amendatory act that authorized that new district is a
10 valid approval for purposes of this section only if the filing
11 occurs not later than 4 p.m. of the ~~sixteenth Tuesday preceding one~~
12 **hundred fifty-first day before** the ~~August-May~~ primary for the
13 election immediately ~~preceding~~ **before** the effective date of the new
14 district.

15 (3) By proposing a new district and 1 or more district
16 judgeships for the district, the legislature is not creating that
17 district or any judgeship in the district. If a district control
18 unit, acting through ~~its~~ **the district control unit's** governing
19 body, approves the creation of a new district and 1 or more
20 district judgeships proposed by law for that district, that
21 approval constitutes an exercise of the district control unit's
22 option to provide a new activity or service or to increase the
23 level of activity or service offered in the district control unit
24 beyond that required by existing law, as the elements of that
25 option are defined by 1979 PA 101, MCL 21.231 to 21.244, and a
26 voluntary acceptance by the district control unit of all expenses
27 and capital improvements ~~which-that~~ may result from the creation of
28 the new district and each judgeship. However, the exercise of the
29 option does not affect ~~the~~ **this** state's obligation to pay the same



1 portion of each judge's salary ~~which~~**that** is paid by ~~the~~**this** state
2 to other district judges as provided by law, or to appropriate and
3 disburse funds to the district control unit for the necessary costs
4 of state requirements established by a state law that becomes
5 effective on or after December 23, 1978.

6 (4) Each district judgeship created under subsection (1) must
7 be filled by election under the Michigan election law, 1954 PA 116,
8 MCL 168.1 to 168.992. The first term of each district judgeship
9 ~~shall be~~**is** 6 years, unless the law permitting the creation of the
10 new district and 1 or more judgeships provides for a term of a
11 different length.

12 (5) The reformation of the seventy-eighth, seventy-ninth,
13 eighty-first, eighty-second, eighty-third, and eighty-seventh
14 judicial districts under 2002 PA 92 does not require the approval
15 of the district control unit under this section or section 8175.

16 (6) The reformation of the seventy-eighth and seventy-ninth
17 judicial districts under ~~the amendatory act that added this~~
18 ~~subsection~~**2022 PA 7** does not require the approval of the district
19 control unit under this section or section 8175.

20 Enacting section 1. This amendatory act takes effect January
21 1, 2028.

22 Enacting section 2. This amendatory act does not take effect
23 unless Senate Bill No. 691 of the 103rd Legislature is enacted into
24 law.

